

A.R.M.'s brief to the Board of Immigration Appeals

Questions presented and requested relief

The brief presents three questions. First, did the immigration judge err by requiring each feared source independently to make torture more likely than not? Second, did the decision meaningfully address evidence of official awareness, willful blindness, and failure to intervene? Third, did it give reasoned consideration to the admitted record rather than relying predominantly on formal prohibitions?

A.R.M. requests vacatur of the CAT denial and remand for application of the proper aggregate-risk and acquiescence standards. The brief relies only on evidence before the immigration judge. It does not ask the Board to find facts about events after the hearing.

Procedural history

A.R.M. conceded removability, filed a CAT-only application, and submitted declarations, corroboration, translations, medical evidence, and country evidence. At the September merits hearing, the judge admitted P-7 after DHS expressly stated that it had no authenticity or timeliness objection. S.M., Nadia Pel, Ilyan Varo, and a DHS policy witness testified.

The October 22 decision credited the core past detention and complaint history but denied relief. A.R.M. timely appealed on November 18. The appeal challenges the analytical method and treatment of material evidence, not the conceded charge.

Statement of credited past events

The judge found that Unit Four officers detained A.R.M. for two nights, used intentional painful pressure and blows to obtain procurement information, and warned against complaint. The decision also found that the complaint named Unit Four, traveled to the Merrow regional command, received no independent interview, and remained “regional response pending” on June 30.

Those findings matter to future risk, intent, and official response. They are supported by A.R.M.'s admitted declaration and testimony, S.M.'s observations, the clinic notation, complaint receipt, routing extract, and Pel's code explanation. The brief does not ask the Board to infer more than the decision already found.

Connected future-risk theory

The feared pathway combines three functions. Registry personnel or systems can identify a return and household links. Harbor League contacts can supply location and procurement context. Unit Four has official access and a demonstrated interest in the copied ledgers. No one component must itself perform every step.

The theory also recognizes overlap. A registry notification and contractor lead may converge on one Unit Four encounter and should not be counted as two complete harms. The required inquiry is whether all relevant pathways, with overlap handled honestly, make qualifying torture more likely than not.

The decision's separate-source rule

The decision states that Unit Four, Harbor League, and registry personnel were evaluated as distinct sources. It then finds each source below the threshold standing alone and concludes the burden was not carried. The decision expressly declines a combined assessment because individual connections contain uncertainty.

That reasoning converts an aggregate probability question into three independent claims. Evidence may be uncertain and still contribute to a combined assessment. The proper approach identifies supported pathways, shared steps, and contrary evidence before reaching one overall probability.

Unit Four evidence

Unit Four previously detained A.R.M., knew internal ledger details, asked about Nadia Pel, and warned against complaint. The regional command later received the complaint. Audit and expert evidence show access to registry and household data through a liaison. These facts support motive, capability, prior conduct, and an official pathway.

The brief acknowledges contrary facts: lawful departure, elapsed time, no authenticated current flag, and formal custody controls. Aggregate analysis requires weighing those facts; it does not permit ending the inquiry because Unit Four viewed in isolation is below one half.

Harbor League evidence

The July speakers referred to the copied ledger and Harbor League. Vendor contacts overlap with a dispatch office associated with a former Unit Four supervisor, and reports describe contractors learning complaint details. The record does not establish that every member participates or that contractors possess detention power.

That limit reinforces rather than defeats the connected theory. Harbor League's asserted role is to share information, apply pressure, and enable official action. Its contribution must be assessed with the official pathway, not required to satisfy the torture definition by itself.

Registry evidence

The registry holds return, employment, and household information. A regional liaison can query those fields, and audit samples include unsupported queries. No registry clerk threatened A.R.M. and no personal flag is proved. The decision treated those facts as reasons to reject registry personnel as an independent torturer.

A.R.M.'s claim is narrower: registry identification can connect a returnee to Unit Four or a contractor network. The absence of independent detention authority does not make that enabling step irrelevant to aggregate future risk.

Official awareness through complaint routing

The Civic Integrity receipt and routing extract show institutional receipt of a complaint naming Unit Four. Pel explained that the operational-security code sent it to the Merrow command rather than the external desk. The June 30 status remained “regional response pending,” without an interview of A.R.M. or S.M.

This evidence supports awareness and a failure to use the written independent-review mechanism. The exact individual reader is unknown, but institutional routing cannot be dismissed solely because the record lacks a senior official's admission of knowledge.

Willful blindness and duty to intervene

Acquiescence does not require express approval. Awareness may include willful blindness followed by breach of a duty to intervene. The decision looked for direct proof that a senior official knew future torture was planned. It did not ask whether officials deliberately avoided the apparent risk revealed by a complaint and prior unit response.

The written protocol imposed an outside-referral safeguard. Routing the complaint back to the named command and accepting its response without an independent interview is material to whether that duty functioned. The Board should require a reasoned assessment of that evidence.

Formal law is relevant but not conclusive

The anti-torture statute, registered-custody rules, hotline, external desk, and discipline figures are contrary evidence and must be considered. The immigration judge treated them as substantial proof that authorities would not acquiesce. The decision did not reconcile that conclusion with the actual route and pending status of this complaint or Varo's municipal sample.

The issue is not whether written safeguards exist. It is whether the agency explained how those safeguards operate for this applicant and this documented complaint pathway. A list of laws is not a substitute for that explanation.

Meaningful consideration of country evidence

Varo distinguished capability from prediction, identified source limits, and supplied contrary evidence. The report mapped the liaison, contractor, registry, and complaint links. The decision summarized those links but declined to use the map because each connection was uncertain.

Uncertainty affects weight, yet the agency must show that it heard and thought about material evidence. The decision does not explain why the credited prior detention and file-specific routing do not strengthen the linked pathway. Remand is appropriate for a reasoned analysis rather than appellate factfinding.

Medical and corroborating evidence

Sore's evaluation and the clinic notation are limited but consistent with the credited past event. S.M.'s contemporaneous observations and log support timing. Pel authenticates the routing and ledger formats. None proves a current registry flag, but together they affect the reliability of the starting facts from which future risk is assessed.

The decision gave the medical evidence substantial past-event weight and then little future weight. A.R.M. does not argue that a healed mark predicts harm. The point is that credited official past harm is one factor in the overall future-risk inquiry.

Relocation analysis

The decision found that movement outside Merrow might reduce exposure. Varo agreed that short-term anonymous lodging exists and that Unit Four does not conduct proven continuous national surveillance. He also explained that entry, employment, and household systems can reconnect a returnee to the regional liaison.

The analysis should address both sides. It should not assume indefinite avoidance of registered work and services without explaining why that is a meaningful answer to the linked risk. A.R.M. asks for reconsideration under the full evidentiary picture, not a categorical finding that no relocation is possible.

Standard for Board review

The Board reviews legal questions and the application of law to undisputed facts under its governing standards, while respecting factual findings unless clearly erroneous. The separate-source method and failure to apply the acquiescence framework are legal or mixed errors visible in the decision. Correcting them does not require the Board to invent a new fact.

If additional findings are needed about combined pathways or government response, the proper course is remand to the immigration judge. The Board should not cure missing reasoning through its own unsupported probability assessment.

Requested disposition

A.R.M. requests that the Board vacate the October 22 denial and remand for a single aggregate-risk assessment, explicit treatment of overlap, and a reasoned application of awareness and duty to intervene. The adjudicator should address formal safeguards together with the file-specific evidence of routing and response.

The brief does not seek admission of material created after the agency hearing. It relies on P-7, the hearing transcripts, admitted exhibits, and decisions already within the agency proceeding.

Certification and record references

Counsel certifies that every factual proposition in this sixteen-page brief is tied to an admitted agency page and that every cited legal proposition is identified in the brief's authority table. The service copy was transmitted to DHS through the agency service channel on the filing date.

The brief uses only A.R.M.'s initials and no sensitive personal identifier. It preserves the aggregate-risk, acquiescence, evidence-consideration, and relocation issues and asks no tribunal to predict the views of a later reviewing court.